



CHAPTER lxxii.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to the Caledonian Railway. A.D. 1903.
[30th June 1903.]

WHEREAS His Majesty's Secretary for Scotland has after inquiry held before Commissioners made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict.
c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation
of Order in
schedule.

2. This Act may be cited as the Caledonian Railway Order Confirmation Act 1903. Short title.

[Ch. lxxii.] *Caledonian Railway Order Confirmation* [3 EDW. 7.]
Act, 1903.

A.D. 1903.

SCHEDULE.

CALEDONIAN RAILWAY.

Provisional Order to confer further powers on the Caledonian Railway Company to sanction their branch railway to the Provan Gasworks in Glasgow to extend the time for the purchase of lands by the Caledonian Railway Company and for the completion of works by that Company and the Callander and Oban Railway Company to provide for the raising of capital in lieu of borrowing by the Glasgow and Renfrew District Railway Company and for other purposes.

WHEREAS it is expedient that the Caledonian Railway Company (hereinafter called “the Company”) should be authorised to construct the railway widenings in the counties of Lanark and Stirling as hereinafter provided :

And whereas it is expedient that the Company should be authorised to acquire and hold for the purposes of their undertaking the lands in the counties of Stirling and Perth hereinafter described :

And whereas the Company have constructed in the parish and city and royal burgh of Glasgow in the county of Lanark a branch railway from the Company’s Glasgow Garnkirk and Coatbridge Railway to the Provan Gasworks of the Corporation of Glasgow and it is expedient that the said branch should be sanctioned as part of the undertaking of the Company :

And whereas the lands and buildings numbered on the plans deposited with reference to the Caledonian Railway (General Powers) Act 1899 14 in the city parish of Glasgow in the county of Lanark consisting of St. Peter’s Parish Church Oswald Street Glasgow were acquired by the Company under the said Act and it is expedient that the said church and the endowments thereof should be removed to a site either within the said parish or to a site adjoining the said parish or to a parish discontinuous therefrom and that the provisions hereinafter contained with reference thereto should be made :

And whereas it is expedient that the powers granted and the periods limited for the purchase of lands for and for the completion

[3 EDW. 7.] *Caledonian Railway Order Confirmation* [Ch. lxxii.]
Act, 1903.

of the railways and works hereinafter mentioned should be A.D. 1903.
extended :

And whereas by the Glasgow and Renfrew District Railway Act 1897 (hereinafter called "the Renfrew Act of 1897") the Glasgow and Renfrew District Railway Company (hereinafter called "the Renfrew Company") were incorporated and authorised to make certain railways and works in the counties of Renfrew and Lanark and to raise a share capital of two hundred and ten thousand pounds and to borrow on mortgage seventy thousand pounds :

60 & 61 Vict
c. clxxi.

And whereas by the Renfrew Act of 1897 it was provided that the Company and the Glasgow and South Western Railway Company (hereinafter referred to as "the Two Companies") should subscribe in equal moieties the sums required for the purposes of the railways thereby authorised not exceeding the amount of the share capital of the Renfrew Company and if such amount should be insufficient that the Two Companies should lend to the Renfrew Company in equal moieties such further sums not exceeding the amount which the Renfrew Company were authorised to borrow as aforesaid :

And whereas by the Glasgow and Renfrew District Railway (Transfer) Act 1901 provisions were made in accordance with the agreement scheduled to and confirmed by the Renfrew Act of 1897 for the transfer to and vesting in the Two Companies jointly as part of the Glasgow and Paisley Joint Railway of the railways authorised by the Renfrew Act of 1897 when completed :

1 Edw. 7.

And whereas the railways of the Renfrew Company are in course of construction but further money is required for their completion and it is expedient that in lieu of the Renfrew Company raising by loan from the Two Companies the money authorised to be borrowed on mortgage by them (none of which has been so borrowed) they should be authorised to raise the money by share capital and that the Two Companies should be authorised to subscribe the same :

And whereas it is expedient that the Company should be authorised to raise additional capital and to borrow further money for the purposes of this Order and that the other powers and provisions in this Order contained should be conferred on or made in relation to the Company and their undertaking :

And whereas plans and sections relating to the works authorised by this Order and plans of the lands which may be taken under the

[Ch. lxxii.] *Caledonian Railway Order Confirmation* [3 Edw. 7.]
Act, 1903.

A.D. 1903. — powers of this Order and books of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the said lands were duly deposited with the principal sheriff clerks of the counties of Lanark Stirling and Perth and are hereinafter referred to as the deposited plans sections and books of reference :

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows :—

Short title. 1. This Order may be cited for all purposes as the Caledonian Railway Order 1903.

Incorporation of Acts. 2. The Lands Clauses Acts the Railways Clauses Consolidation (Scotland) Act 1845 Part I. (relating to construction of a railway) and Part II. (relating to extension of time) of the Railways Clauses Act 1863 the clauses and provisions of the Companies Clauses Consolidation (Scotland) Act 1845 with respect to the following matters (that is to say):—

The distribution of the capital of the Company into shares ;

The transfer or transmission of shares ;

The payment of subscriptions and the means of enforcing the payment of calls ;

The forfeiture of shares for non-payment of calls ;

The remedies of creditors of the Company against the shareholders ;

The borrowing of money by the Company on mortgage or bond ;

The conversion of the borrowed money into capital ;

The consolidation of the shares into stock ;

The general meetings of the Company and the exercise of the right of voting by the shareholders ;

The making of dividends ; and

The giving of notices ;

and Part I. (relating to cancellation and surrender of shares) Part II. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by any subsequent Act are (except where and as expressly varied by this Order) incorporated with and form part of this Order and all the provisions of the Companies Clauses Consolidation (Scotland) Act

[3 EDW. 7.] *Caledonian Railway Order Confirmation* [Ch. lxxii.]
Act, 1903.

1845 so incorporated with this Order which relate to stock into which shares in the capital of a company have been converted or consolidated shall apply to the stock which the Company are by this Order authorised to issue and to the holders thereof. A.D. 1903.

This Order shall be deemed to be a special Act within the meaning of the Acts wholly or partially incorporated with this Order.

3. In this Order unless there be something in the subject or context repugnant to such construction— Interpreta-
tion.

The several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings :

The expression “the Company” means the Caledonian Railway Company ;

The expression “the Renfrew Company” means the Glasgow and Renfrew District Railway Company ;

The expression “the Two Companies” means the Company and the Glasgow and South Western Railway Company ;

The expression “the Renfrew Act of 1897” means the Glasgow and Renfrew District Railway Act 1897 :

In the provisions of Part II. of the Railways Clauses Act 1863 incorporated with this Order—

The expression “the railway and works” means the railways and other works the time for the purchase of lands for or for the completion of which are by this Order extended and the expression “the Company” means the Company authorised to construct such respective railways and works :

In the other provisions of the Acts wholly or partially incorporated with this Order—

The expressions “the Company” “the Undertakers” and “the Promoters of the undertaking” and other like expressions mean respectively the Company ;

The expressions “the railway” and “the undertaking” or other like expressions mean respectively the railways by this Order authorised or either of them ;

The expressions “schoolmasters of the several parishes” and “schoolmasters” in sections 7 8 and 9 of the Railways Clauses Consolidation (Scotland) Act 1845 mean as regards any lands in a burgh the town clerk

[Ch. lxxii.] *Caledonian Railway Order Confirmation* [3 EDW. 7.]
Act, 1903.

A.D. 1903.

of such burgh and as regards any lands in any parish (outside a burgh) the clerk to the parish council of such parish.

Power to
Company to
make works.

4. Subject to the provisions of this Order the Company may make and maintain in the lines and according to the levels shown on the deposited plans and sections the railways hereinafter described with all proper stations sidings junctions roads approaches and other works and conveniences in connection therewith and may enter upon take and use such of the lands delineated on the said plans and described in the deposited books of reference as may be required for those purposes (that is to say) :—

A Railway (No. 2) (four furlongs 4·85 chains in length) being a widening of the Company's Grangemouth Harbour Branch Railway commencing by a junction with that branch railway at a point one hundred and twenty-four yards or thereabouts south-westwards from the south-east corner of the Grangemouth south signal cabin on that branch and terminating by a junction with the said branch railway at a point three hundred and twenty-eight yards or thereabouts north-eastwards from the centre of the bridge carrying the Bo'ness Road over the said branch railway :

A Railway (No. 3) (six furlongs 4·40 chains in length) being a widening of the Company's Rutherglen and Coatbridge Branch Railway commencing by a junction with that branch railway at a point forty yards or thereabouts eastwards from the south-east corner of the Kirkwood Colliery signal cabin on that branch railway and terminating by a junction with the said branch railway at a point eight yards or thereabouts northwards from the north-west corner of the Langloan signal cabin on the said branch railway.

Tolls &c. on
railways of
Company.

5. The railways by this Order authorised to be constructed shall be part of the undertaking of the Company and for the purposes of tolls rates and charges shall be deemed part of the Company's railways of which they are respectively widenings.

Power for
Company to
acquire cer-
tain lands.

6. Subject to the provisions of this Order and in addition to the other lands which the Company are by this Order authorised to acquire the Company may enter upon take and use for the purposes of their undertaking the lands hereinafter described and delineated on the deposited plans and described in the deposited books of reference (that is to say) :—

(A) Certain lands in the royal burgh of Stirling in the county of Stirling adjoining the west side of the Company's main

[3 EDW. 7.] *Caledonian Railway Order Confirmation* [Ch. lxxii.]
Act, 1903.

line of railway at Stirling Station and lying between Shore Road and Station Road in that burgh : A.D. 1903.
 ———

(B) Certain lands in the parish of Ardoch in the county of Perth lying on either side of the Company's railway near the Royal Caledonian Curling Pond at Carsebreck.

7. If the railways by this Order authorised to be constructed by the Company are not completed within five years from the passing of the Act to confirm this Order then on the expiration of that period the powers by this Order granted for making and completing the same or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed. Period for completion of works.

8. The powers for the compulsory purchase of lands under this Order shall cease after the expiration of three years from the passing of the Act to confirm this Order. Period for compulsory purchase of lands.

9. Persons empowered by the Lands Clauses Acts to sell and convey or discharge lands may if they think fit subject to the provisions of those Acts and of this Order grant to the Company any servitude right or privilege (not being a servitude right or privilege of water in which other persons than the grantors have an interest) required for the purposes of this Order in over or affecting any lands and the provisions of the said Acts with respect to lands and feu duties or ground annuals so far as the same are applicable in this behalf shall extend and apply to such grants and to such servitudes rights and privileges as aforesaid respectively. Power to take servitudes &c. by agreement.

10. The quantity of land to be acquired by agreement by the Company for the extraordinary purposes mentioned in the Railways Clauses Consolidation (Scotland) Act 1845 in connection with the works authorised by this Order shall not exceed five acres in addition to the lands which the Company are authorised by this Order to take compulsorily but nothing in that Act or in this Order shall exempt the Company from any action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them upon any land so taken. Lands for extraordinary purposes.

11. The Company may for and in connection with the construction of Railway No. 2 in the burgh of Grangemouth temporarily stop up in whole or in part or otherwise interfere with Bo'ness Road and the lane numbered on the deposited plans 12 and 17 respectively in the parish of Grangemouth. Power to occupy streets in Grangemouth.

12. The Company may in connection with the construction of the works by this Order authorised permanently stop up and Stopping up portions of roads &c.

**[Ch. lxxii.] Caledonian Railway Order Confirmation [3 EDW. 7.]
Act, 1903.**

A.D. 1903. — appropriate without payment and without substituting any other road lane or footpath therefor the roads or streets or portions of road or street and the lane or footpath hereinafter mentioned and shown on the deposited plans as to be stopped up (that is to say) :—

- (1) The portion of the Old Bo'ness Road in the burgh of Grangemouth lying between the Company's Grangemouth Harbour Branch Railway and a point thirty-two yards or thereabouts westwards from Dundas Street in that burgh :
- (2) The lane or footpath in the burgh of Grangemouth running between the Old Bo'ness Road and the New Bo'ness Road immediately to the north of the Grangemouth Established Church :
- (3) The portion of Union Place in the burgh of Grangemouth extending from its junction with Kerse Road to a point thirty-four yards or thereabouts westwards from Dundas Street.

Upon the said roads or streets or portions of road or street and the lane or footpath being so stopped up all rights of way over the same shall be extinguished and the Company may subject to the provisions of the Railways Clauses Consolidation (Scotland) Act 1845 with respect to mines lying under or near the railway use for the purposes of their undertaking the sites thereof so far as the same are bounded on both sides by property of the Company :

Provided that no such road or street or portions of road or street or lane or footpath shall be stopped up unless the Company are owners in possession of all houses and lands in the said road or street or portions of road or street or lane or footpath so to be stopped up except so far as the owners lessees and occupiers of such houses and lands may otherwise agree.

Inclination
of roads.

13. In altering for the purposes of the following railway the roads next hereinafter mentioned the same may be made of any inclinations not steeper than the inclinations hereinafter mentioned in connection therewith (that is to say) :—

Nos. on deposited Plans.	Parish.	Description of Road.	Intended Inclination.
RAILWAY No. 2.			
12	Grangemouth - -	Public Lane - -	1 in 9
17	Grangemouth - -	Public Road - -	1 in 25

[3 EDW. 7.] *Caledonian Railway Order Confirmation* [Ch. lxxii.]
Act, 1903.

14. The Company may make the arch of the bridge for carrying the following railway over the road next hereinafter mentioned of any height and span not less than the height and span hereinafter prescribed in connection therewith (that is to say):—

A.D. 1903.
Height and span of bridge.

No. on deposited Plans.	Parish.	Description of Road.	Height.	Span.
7	RAILWAY No. 3. Old Monkland -	Public road -	Feet. 13	Feet. 32½

15. And whereas it may happen that portions only of the houses or other buildings or manufactories shown on the deposited plans may be sufficient for the purposes of this Order and that such portions may be severed from the remainder of the said properties without material detriment thereto Therefore notwithstanding section 90 of the Lands Clauses Consolidation (Scotland) Act 1845 the owners of and other persons interested in any of the properties described in the schedule to this Order and whereof parts only are required for the purposes of this Order may (if the same can in the opinion of the jury arbiters or other authority to whom the question of disputed compensation shall be submitted be severed from the remainder of the premises without material detriment thereto) be required to sell and convey to the Company the portion only of the premises so required without the Company being obliged or compellable to purchase the whole or any greater portion thereof the Company paying for the portion taken by them and making compensation for any damage sustained by the owners thereof and other parties interested therein by severance or otherwise Provided that if in any case in the opinion of the jury arbiters or other authority as aforesaid any such portion cannot be severed from the remainder of such property without material detriment thereto the Company may at any time within one month after the date of the final decision of such jury arbiters or other authority withdraw their notice to treat for the portion required by them and thereupon they shall pay to the owners of and other parties interested in the property in respect of any portion of which they have given notice to treat all loss and damage sustained and all costs charges and expenses (as the same shall be taxed as between solicitor and client) reasonably incurred by them in consequence of such notice Provided also that nothing in this section contained shall be held as determining whether the properties

Owners may be required to sell parts only of certain properties.

[Ch. lxxii.] *Caledonian Railway Order Confirmation* [3 EDW. 7.]
Act, 1903.

A.D. 1903. — described in the said schedule are or are not subject to the provisions of section 90 of the Lands Clauses Consolidation (Scotland) Act 1845.

Company
empowered
or may be
required to
underpin or
otherwise
strengthen
houses.

16. And whereas in order to avoid in the execution and maintenance of any works authorised by this Order injury to the houses and buildings within one hundred feet thereof it may be necessary to underpin or otherwise strengthen the same Therefore the Company at their own costs and charges may and if required by the owners or lessees of any such house or building shall subject as hereinafter provided underpin or otherwise strengthen the same and the following provisions shall have effect (that is to say) :—

- (1) At least ten days' notice shall unless in case of emergency be given to the owners lessees and occupiers or by the owners or lessees of the house or building so intended or so required to be underpinned or otherwise strengthened :
- (2) Each such notice if given by the Company shall be served in manner prescribed by section 18 of the Lands Clauses Consolidation (Scotland) Act 1845 and if given by the owners or lessees of the premises to be underpinned or strengthened shall be sent to the principal office of the Company :
- (3) If any owner lessee or occupier of any such house or building or the Company as the case may require shall within seven days after the giving of such notice give a counter notice in writing that he or they as the case may be dispute the necessity of such underpinning or strengthening the question of the necessity shall be referred to an engineer to be agreed upon or in case of difference to an engineer to be appointed at the instance of either party by the Board of Trade :
- (4) Such referee shall forthwith upon the application of either party proceed to inspect such house or building and determine the matter referred to him and in the event of his deciding that such underpinning or strengthening is necessary he may and if so required by such owner lessee or occupier he shall prescribe the mode in which the same shall be executed and the Company may and shall proceed forthwith so to underpin or strengthen the said house or building :
- (5) The Company shall be liable to compensate the owners lessees and occupiers of every such house or building for

any inconvenience loss or damage which may result to them by reason of the exercise of the powers granted by this enactment : A.D. 1903.

- (6) If in any case in which any house or building shall have been underpinned or strengthened on the requisition of the Company such underpinning or strengthening shall prove inadequate for the support or protection of the house or building against further injury arising from the execution or use of the works of the Company then and in every such case unless such underpinning or strengthening shall have been done in pursuance of and in the mode prescribed by the referee the Company shall make compensation to the owners lessees and occupiers of such house or building for such injury provided the claim for compensation in respect thereof be made by such owners within twelve months and by such lessees or occupiers within six months from the discovery thereof :
- (7) Nothing in this enactment contained nor any dealing with any property in pursuance of this enactment shall relieve the Company from liability to compensate under the Lands Clauses Consolidation (Scotland) Act 1845 or under any other Act :
- (8) Every case of compensation to be ascertained under this enactment shall be ascertained according to the provisions of the Lands Clauses Acts :
- (9) Nothing in this section shall repeal or affect the application of section 90 of the Lands Clauses Consolidation (Scotland) Act 1845.

17. In the construction of the Railway No. 2 on the deposited plans the following provisions shall have effect for the protection of the provost magistrates and councillors of the burgh of Grangemouth (in this section called "the town council") (that is to say) :—

For protection of burgh of Grangemouth.

- (1) In altering the Road No. 12 on the deposited plans the Company shall on the written request of the town council place and maintain at both ends of the said road a sufficient number of posts to the satisfaction of the town council to prevent vehicular traffic from using the said road and the Company shall also to the satisfaction of the town council form the whole width of the said road into a footpath adapted for the use of pedestrian traffic only :

[Ch. lxxii.] *Caledonian Railway Order Confirmation* [3 Edw. 7.]
Act, 1903.

A.D. 1903

- (2) In carrying out the alterations of the level on the Bo'ness Road being No. 17 on the deposited plans the Company shall restore the surface of the said road and the footpaths on both sides thereof to the satisfaction of the town council :
- (3) In constructing the bridge for carrying the said Bo'ness Road over the said railway the Company shall provide that no part of the said bridge shall have irons or angles projecting on to the foot pavements on either side and the Company shall fill up the spaces between the irons or angles projecting from the existing bridge so that the same may be flush throughout on both sides :
- (4) The Company shall before altering and stopping up the road No. 7 on the deposited plans make provision to the reasonable satisfaction of the town council and at the expense of the Company for any alterations on or removal and replacement of any sewers and water pipes of the town council in the said road and such alteration removal or replacement shall be carried out at the sight of the engineer or burgh surveyor of the town council :
- (5) If any difference shall arise between the Company and the town council as to the meaning of this section or any matter arising out of the same such difference shall be settled by an arbiter to be agreed upon between the parties or in case of difference to be appointed on the application of either party by the Board of Trade.

For protec-
tion of North
British Rail-
way Com-
pany.

18.—(1) Notwithstanding anything contained in this Order the Company shall not interfere with the water tank belonging to the North British Railway Company situated within the limits of deviation shown on the deposited plan and section of Railway No. 2 or with any of the appurtenances of said tank or the water supply thereto until they shall have first made and completed to the reasonable satisfaction of the engineer of that company and ready for that company's use on a site to be approved of by said engineer a new water tank and all appurtenances equal in every respect to the existing tank and appurtenances If any difference shall arise between the Company and the North British Railway Company as to the meaning of this subsection or any matter arising out of the same such difference shall be settled by an arbiter to be agreed upon by the parties or failing agreement to be appointed on the application of either party by the Board of Trade.

[3 EDW. 7.] *Caledonian Railway Order Confirmation* [Ch. lxxii.]
Act, 1903.

(2) The running powers and other rights possessed by the North British Railway Company over and upon the Grangemouth Harbour Branch Railway of the Company shall extend and apply to Railway No. 2 by this Order authorised and the payment provided by the Caledonian Railway (Grangemouth Harbour) Act 1876 to be made by the North British Railway Company to the Company in respect of the use by that company of the works and conveniences (including land) formed by the Company after the passing of that Act shall apply to the said Railway No. 2. A.D. 1903

(3) All facilities and other rights possessed by the North British Railway Company over and upon the Rutherglen and Coatbridge Branch Railway of the Company shall extend and apply to Railway No. 3 by this Order authorised.

19. For the protection of the provost magistrates and councillors of the burgh of Coatbridge (hereinafter called "the corporation") the following provisions shall notwithstanding anything shown on the deposited plans and sections unless otherwise agreed between the Company and the corporation have effect (that is to say):— For protection of corporation of Coatbridge.

(1) The widening or widenings of the existing bridge for the purpose of carrying Railway No. 3 over Woodside Street shall have a clear span throughout of not less than thirty-two and a half feet between the abutments and a clear headway throughout of not less than thirteen feet :

(2) The Company shall at their own cost in constructing the said widening or widenings set back the western abutment of the existing bridge so as to make the span of the said bridge of the same dimensions as the span of the said widening or widenings and the clear headway throughout of the said bridge as altered shall not be less than thirteen feet :

(3) In constructing the said widening or widenings and in altering the existing bridge the Company may alter the gradients of the street under and on either side of the existing bridge to such extent as may be reasonably required for the purpose of giving the prescribed headway provided that the present level of the street be in no place lowered more than two feet three inches and that any alteration of gradient of the street under and on the south side of the existing bridge shall not be greater than 1 in 11·0 and on the north side than 1 in 75·9 :

[Ch. lxxii.] *Caledonian Railway Order Confirmation* [3 EDW. 7.]
Act, 1903.

A.D. 1903.

- (4) The said widening or widenings of the existing bridge shall be constructed and the existing bridge altered in such a manner as to prevent so far as practicable the dripping of water on to the road and footways beneath :
- (5) If in the construction of Railway No. 3 any pipes sewers or drains of the corporation are interfered with all alterations of the same and all additional mains and pipes rendered necessary by any of the works authorised by this Order shall respectively be made and laid by the Company at their expense in accordance with plans to be previously submitted by the Company to and reasonably approved by the engineer of the corporation Provided that if he fail to signify his approval or disapproval or to state his requirements in writing with respect to such plans within twenty-one days after such submission he shall be deemed to have approved thereof :
- (6) In case of any difference arising between the Company and the corporation or their engineer with respect to any of the matters in this section contained such difference shall be settled and determined by an engineer to be mutually appointed or failing agreement to be appointed by the Board of Trade on the application of either the corporation or the Company and the expenses of such reference shall be in the discretion of the arbiter.

Restriction
on taking
land of Post
Office.

20. Nothing in this Order contained shall be deemed to authorise the Company to enter upon take or use without the consent of the Postmaster-General any part of the Post Office premises at Stirling or of the garden ground belonging thereto numbered five on the deposited plans relating to the royal burgh of Stirling.

Penalties
imposed
unless rail-
ways opened
within time
limited.

21. If the Company fail within the period limited by this Order to complete any of the railways by this Order authorised the Company shall be liable to a penalty of fifty pounds a day for every day after the expiration of the periods so limited until such railway is completed and opened for public traffic or until the sum received in respect of such penalty amounts to five per cent. on the estimated cost of the railway And the said penalty may be applied for by any landowner or other person claiming to be compensated or interested in accordance with the provisions of the next following section of this Order and in the same manner as the penalty provided in section 3 of the Railway and Canal Traffic

[3 EDW. 7.] *Caledonian Railway Order Confirmation* [Ch. lxxii.]
Act, 1903.

Act 1854 And every sum of money recovered by way of such penalty as aforesaid shall be paid under the warrant or order of such court or judge as is specified in that section to an account opened or to be opened in the name of the King's and Lord Treasurer's Remembrancer on behalf of the Court of Exchequer in Scotland in the bank and to the credit specified in such warrant or order and shall not be paid thereout except as hereinafter provided But no penalty shall accrue in respect of any time during which it shall appear by a certificate to be obtained from the Board of Trade that the Company were prevented from completing or opening such railway by unforeseen accident or circumstances beyond their control Provided that the want of sufficient funds shall not be held to be a circumstance beyond their control. A.D. 1903.
—

22. Every sum of money so recovered by way of penalty as aforesaid shall be applicable and after due notice in the Edinburgh Gazette shall be applied towards compensating any landowners or other persons whose property has been interfered with or otherwise rendered less valuable by the commencement construction or abandonment of the railway or any portion thereof or who may have been subjected to injury or loss in consequence of the compulsory powers of taking property for such railway conferred by this Order and for which injury or loss no compensation or inadequate compensation has been paid and shall be distributed in satisfaction of such compensation as aforesaid in such manner and in such proportions as to the Court of Exchequer in Scotland may seem fit And if no such compensation shall be payable or if a portion of the sum or sums of money so recovered by way of penalty as aforesaid has been found sufficient to satisfy all just claims in respect of such compensation then the said sum or sums of money recovered by way of penalty or such portion thereof as may not be required as aforesaid shall if a judicial factor has been appointed or the Company is insolvent or the railway in respect of which the penalty has been incurred or any part thereof has been abandoned be paid or transferred to such judicial factor or be applied in the discretion of the court as part of the assets of the Company for the benefit of the creditors thereof and subject to such application shall be repaid to the Company. Application
of penalties.

23. The branch railway constructed by the Company in the parish and city and royal burgh of Glasgow in the county of Lanark commencing by a junction with the Company's Glasgow Garnkirk and Coatbridge Railway at a point one hundred and Sanctioning
Provan
Gasworks
Branch
Railway.

[Ch. lxxii.] *Caledonian Railway Order Confirmation* [3 EDW. 7.]
Act, 1903.

A.D. 1903. — fourteen yards or thereabouts north-eastwards from the centre of the bridge carrying the North British Railway Company's Railway under the said Glasgow Garnkirk and Coatbridge Railway and terminating on the north side of the Garngad Road at a point forty-three yards or thereabouts south-westwards from the junction of Broomfield Road with the Garngad Road at or near the Provan Gasworks of the corporation of Glasgow and all works and conveniences connected therewith are hereby legalised and may be maintained by the Company as and shall for all purposes including tolls rates and charges be held to be part of the undertaking of the Company and the rates and charges which under the Railway Rates and Charges No. 19 (Caledonian Railway &c.) Order Confirmation Act 1892 are leviable by the Company in respect of their railways between Ross Junction and Glasgow shall apply to the said railway and the traffic thereon and the application of the funds which the Company have expended for the purposes of the said branch railway is hereby sanctioned.

Provisions as
to St. Peter's
Church.

24.—(1) The session and trustees of St. Peter's parish church Oswald Street Glasgow shall be entitled to pay or apply so much of the price realised by the sale of the said church to the Company under the powers of the Caledonian Railway (General Powers) Act 1899 as they and the presbytery of Glasgow may think proper towards the ecclesiastical needs of the present parish of St. Peter's.

(2) The said session and trustees with consent of the said presbytery shall be entitled to acquire a new church and suitable offices on a suitable site either within or without the said parish and that either by building a new church and offices or acquiring an existing church and altering or adding to the same all as the said presbytery and session and trustees may determine.

(3) The court of teinds on the petition of the said session and trustees with the approval of the presbytery shall be entitled to define the boundaries of a new or additional parish for and in connection with such new church and to conjoin disjoin or annex any portions of other parishes to such new parish and to abolish the present parish or any part thereof and annex the same to other existing parishes and to sanction the transference of the endowments of the existing church to the said conjoined or new parish and to authorise the said session and trustees after deducting all necessary expenses to apply any surplus of the said price to any of the purposes of this section or such other purposes connected with

[3 EDW. 7.] *Caledonian Railway Order Confirmation* [Ch. lxxii.]
Act, 1903.

such new church or the services thereof including the acquisition of a manse and hall and the increase of the present endowment all as the said session and trustees and presbytery may approve. A.D. 1903.

25. The period limited by the Caledonian Railway Act 1897 for the completion of the sea wall or embankment entrance channel (with locks) dock junction cut and jetties by that Act authorised and therein referred to as Works 1 to 6 and works connected therewith is hereby extended for three years from the expiration of the said period that is until the fifteenth day of July one thousand nine hundred and seven. Extending time for completion of dock works at Grange-mouth.

26. The periods limited by the Callander and Oban Railway Act 1897 as extended by the Caledonian Railway Act 1900 for the completion of the railway (in the said Act of 1897 referred to as Railway No. 4) and for the extension and enlargement of the quay and sea wall and of the road at Oban respectively authorised by the Callander and Oban Railway Act 1897 and works connected therewith are hereby extended for three years from the expiration of such periods that is in the case of the railway until the sixth day of August one thousand nine hundred and seven and in the case of the extension and enlargement of the quay and sea wall and the road until the sixth day of August one thousand nine hundred and six. Extending time for completion of works at Oban.

27. The powers for the compulsory purchase and taking of lands granted by the Caledonian Railway Act 1900 in respect of Railway No. 1 by that Act authorised and the works connected therewith are hereby extended and may be exercised by the Company at any time within but shall cease after the expiration of two years after the passing of the Act confirming this Order and the period limited by the same Act for the completion of the said railway is hereby extended for three years from the expiration thereof that is until the sixth day of August one thousand nine hundred and eight. Extending time for purchase of land for and completion of Railway No. 1 authorised by Act of 1900.

28.—(1) The Company shall not under the powers of this Order or under the powers of any former Act extended by this Order purchase or acquire in any district within the meaning of the Public Health (Scotland) Act 1897 ten or more houses which on the fifteenth day of December next before the passing of the Act confirming this Order or of the former Act by which the purchase or acquisition was originally authorised were or have been since that day or shall hereafter be occupied either wholly or partially by Restrictions on displacing persons of labouring class.

[Ch. lxxii.] *Caledonian Railway Order Confirmation* [3 EDW. 7.]
Act, 1903.

A.D. 1903. — persons belonging to the labouring class as tenants or lodgers unless and until the Company—

(A) Shall have obtained the approval of the Secretary for Scotland to a scheme for providing new dwellings for such number of persons as were residing in such houses on the said fifteenth day of December or for such number of persons as the Secretary for Scotland shall after inquiry deem necessary having regard to the number of persons on or after that date residing in such houses and working within one mile therefrom and to the amount of vacant suitable accommodation in the immediate neighbourhood of such houses or to the place of employment of such persons and to all the circumstances of the case; and

(B) Shall have given security to the satisfaction of the Secretary for Scotland for the carrying out of the scheme.

(2) The approval of the Secretary for Scotland to any scheme under this section may be given either absolutely or conditionally and after the Secretary for Scotland has approved of any such scheme he may approve either absolutely or conditionally of any modifications in the scheme.

(3) Every scheme under this section shall contain provisions prescribing the time within which it shall be carried out and shall require the new dwellings proposed to be provided under the scheme to be completed fit for occupation before the persons residing in the houses in respect of which the scheme is made are displaced :

Provided that the Secretary for Scotland may dispense with the last-mentioned requirement subject to such conditions (if any) as he may see fit.

(4) Any provisions of any scheme under this section or any conditions subject to which the Secretary for Scotland may have approved of any such scheme or of any modifications of any such scheme or subject to which he may have dispensed with the above-mentioned requirement shall be enforceable by an order of the Court of Session to be obtained by the Secretary for Scotland.

(5) If the Company acquire or appropriate any house or houses in contravention of the foregoing provisions or displace or cause to be displaced the persons residing in any house or houses in contravention of the requirements of the scheme they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Secretary for Scotland by action

in the Court of Session and shall be carried to and form part of the Consolidated Fund of the United Kingdom. Provided that the Court may if it think fit reduce such penalty. A.D. 1903.

(6) For the purpose of carrying out any scheme under this section the Company may appropriate any lands for the time being belonging to them or which they have power to acquire and may purchase such further lands as they may require and for the purpose of any such purchase section 145 of the Public Health (Scotland) Act 1897 shall be incorporated with this Order and shall apply to the purchase of lands by the Company for the purposes of any scheme under this section in the same manner in all respects as if the Company were a local authority within the meaning of that Act and the scheme were one of the purposes of that Act.

(7) The Company may on any lands belonging to them or purchased or acquired under this section or under any Provisional Order issued in pursuance of this section erect such dwellings for persons of the labouring class as may be necessary for the purpose of any scheme under this section and may sell demise let or otherwise dispose of such dwellings and any lands purchased or acquired as aforesaid and may apply for the purposes of this section to which capital is properly applicable or any of such purposes any moneys which they may be authorised to raise or apply for the general purposes of their undertaking:

Provided that all lands on which any buildings have been erected or provided by the Company in pursuance of any scheme under this section shall for a period of twenty-five years from the date of the scheme be appropriated for the purpose of such dwellings and every conveyance demise or lease of such lands and buildings shall contain proper covenants to secure during such period of twenty-five years the use of the buildings on such lands for the purpose of such dwellings and shall be endorsed with notice of this enactment:

Provided that the Secretary for Scotland may at any time dispense with all or any of the requirements of this subsection subject to such conditions (if any) as he may see fit.

(8) The Secretary for Scotland may direct any inquiries to be held which he may deem necessary in relation to any scheme under this section and for giving effect to any of the provisions of this section and he and any person appointed by him to hold inquiry shall have and may exercise for any purpose in connection with any scheme under this section all or any of the powers vested in them

[Ch. lxxii.] *Caledonian Railway Order Confirmation* [3 EDW. 7.]
Act, 1903.

A.D. 1903. — respectively under the Public Health (Scotland) Act 1897 in the same manner in every respect as if the preparation and carrying into effect of such scheme were one of the general purposes of that Act.

(9) The Company shall pay to the Secretary for Scotland any expenses incurred by him in relation to any inquiries under this section including the expenses of any witnesses summoned by the person appointed to hold any such inquiry and a sum to be fixed by the Secretary for Scotland not exceeding three guineas a day for the services of the person so appointed.

(10) Any houses purchased or acquired by the Company for or in connection with any of the purposes of this Order or of any former Act extended by this Order whether purchased or acquired in exercise of the powers conferred by this Order or otherwise and whether before or after the passing of the Act to confirm this Order which may have been occupied by persons of the labouring class within five years before the passing of such Act and for which houses no substitutes have been or are directed to be provided by any scheme approved by the Secretary for Scotland under the powers of any previous Act relating to the Company shall for the purposes of this section be deemed to have been acquired under the powers of this Order and to have been occupied on the fifteenth day of December last by the same number of persons belonging to the labouring class as were occupying the said houses at the date of their acquisition. Provided that if the Secretary for Scotland is unable to ascertain the number of such persons who were then occupying the said houses the said houses shall be deemed to have been occupied by such number of such persons as in the opinion of the Secretary for Scotland they might have been sufficient to accommodate.

(11) For the purposes of this section—

The expression “house” means any house or part of a house occupied as a separate dwelling; and

The expression “labouring class” means mechanics artisans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any such persons who may be residing with them.

[3 EDW. 7.] *Caledonian Railway Order Confirmation* [Ch. lxxii.]
Act, 1903.

29. The Renfrew Company may if they think fit in lieu of borrowing money on mortgage or by the creation and issue of debenture stock raise the sum of seventy thousand pounds authorised by the Renfrew Act of 1897 to be borrowed by them by the creation and issue of additional ordinary shares as if the same had been authorised by the last-mentioned Act as part of the original capital of the Renfrew Company.

A.D. 1903.

Power to
Renfrew
Company to
raise capital
in lieu of
borrowing.

30. The Two Companies may in lieu of lending the money to the Renfrew Company as authorised by the Renfrew Act of 1897 subscribe in equal moieties such additional sums to the capital of the Renfrew Company as may be required for the completion of the railways and works of the Renfrew Company not exceeding in the whole the said sum of seventy thousand pounds being the amount of the additional share capital of the Renfrew Company by this Order authorised and the Two Companies may respectively raise and apply for the purposes of such subscriptions any money which by the Renfrew Act of 1897 they were respectively authorised to raise or apply for the purposes of the loan to the Renfrew Company by that Act authorised.

Additional
capital to be
subscribed
by Two
Companies.

31. The provisions of the Renfrew Act of 1897 with respect to the share capital of the Renfrew Company by that Act authorised and to the shares in such capital by that Act authorised to be subscribed and held by the Two Companies respectively shall extend and apply to the additional share capital by this Order authorised to be raised by the Renfrew Company and to the shares in the additional capital to be subscribed and held by the Two Companies respectively and upon the dissolution of the Renfrew Company in accordance with the Glasgow and Renfrew District Railway (Transfer) Act 1901 the provisions of this Order relating to the additional capital of the Renfrew Company shall be repealed and the shares in such additional capital held by the Two Companies respectively shall be cancelled.

Application
of Renfrew
Act to addi-
tional capi-
tal and sub-
scriptions.

32. The Company may apply towards any of the purposes authorised by this Order to which capital is properly applicable any capital or funds belonging to or authorised to be raised by them and which may not be required for the purposes for which the same were authorised to be raised or directed to be applied.

Application
of funds of
Company.

33. The Company may for any of the purposes of this Order raise subject to the provisions of Part II. of the Companies Clauses Act 1863 as amended by any subsequent Act additional capital

Power for
Company to
raise addi-
tional capital.

[Ch. lxxii.] *Caledonian Railway Order Confirmation* [3 EDW. 7.]
Act, 1903.

A.D. 1903. not exceeding in nominal amount the sum of thirty-three thousand pounds by the creation and issue at their option of new ordinary shares or stock or new preference shares or stock or wholly or partially by any one or more of those modes respectively but the Company shall not issue any share of less nominal value than ten pounds nor shall any share vest in the person or corporation accepting the same unless and until a sum not being less than one-fifth of the amount of such share shall have been paid in respect thereof. Provided that if in any year ending on the thirty-first day of January there are not profits available for the payment of the full amount of preferential dividend or interest for that year on any such new preference shares or stock no part of the deficiency shall be made good out of the profits of any subsequent year or out of any other funds of the Company.

Except as otherwise provided new shares or stock to be subject to same incidents as other shares or stock :

34. Except as by this Order otherwise provided the capital in new shares or stock created by the Company under this Order and the new shares or stock therein and the holders thereof respectively shall be subject and entitled to the same powers provisions liabilities rights privileges and incidents whatsoever in all respects as if that capital were part of the now existing capital of the Company of the same class or description and the new shares or stock were shares or stock in that capital.

And to form part of capital of Company.

35. The capital in new shares or stock so created shall form part of the capital of the Company.

Dividends on new shares or stock.

36. Every person who becomes entitled to new shares or stock shall in respect of the same be a holder of shares or stock in the Company and shall be entitled to a dividend with the other holders of shares or stock of the same class or description proportioned to the whole amount from time to time called and paid on such new shares or to the whole amount of such stock as the case may be.

Votes in respect of new shares or stock.

37. Each holder of new shares or stock in the capital by this Order authorised to be raised shall be entitled to the same number of votes in respect thereof which the possession of an equal nominal amount of the existing capital stock of the Company would have conferred upon him. Provided that except as otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect of any new shares or stock to which a preferential dividend shall be assigned.

New shares or stock raised under

38. Subject to the provisions of any Act or Order already passed or made by which the Company are authorised to raise

[3 EDW. 7.] *Caledonian Railway Order Confirmation* [Ch. lxxii.]
Act, 1903.

capital by new shares or stock and to the provisions of this Order and of any other Act or Order passed or made in the present session of Parliament by which the Company may be authorised to raise capital by new shares or stock the Company may if they think fit raise by the creation and issue of new shares or stock of one and the same class all or any part of the aggregate capital which they are by such other Acts or Orders and this Order respectively authorised to raise by the creation and issue of new shares or stock.

A.D. 1903.
this Order
and other
Acts or
Orders may
be of same
class.

39. The Company may in respect of the additional capital of thirty-three thousand pounds which they are hereinbefore authorised to raise borrow on mortgage of their undertaking any sums not exceeding in the whole eleven thousand pounds but no part thereof shall be borrowed until the whole of the said capital is issued and accepted and one half thereof is paid up and the Company have proved to the sheriff who is to certify under the forty-second section of the Companies Clauses Consolidation (Scotland) Act 1845 before he so certifies that the whole of such capital has been issued and accepted and that one half thereof has been paid up and that not less than one-fifth part of the amount of each separate share and the whole amount of the stock in such capital has been paid on account thereof before or at the time of the issue or acceptance thereof and that such capital was issued bonâ fide and is held by the persons to whom the same was issued or their executors administrators successors or assignees and that such persons or their executors administrators successors or assignees are legally liable for the same and upon production to such sheriff of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

Power for
Company to
borrow.

40. The mortgagees of the Company under this Order or any previous Act or Order may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a judicial factor In order to authorise the appointment of a judicial factor in respect of arrears of principal the amount owing to the mortgagees by whom the application for a judicial factor is made shall be not less than ten thousand pounds in the whole.

Arrears may
be enforced
by appoint-
ment of a
judicial
factor.

41. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses

Power to
create debenture
stock.

[Ch. lxxii.] *Caledonian Railway Order Confirmation* [3 EDW. 7.]
Act, 1903.

- A.D. 1903. — Act 1863 as amended by any subsequent Act but notwithstanding anything therein contained the interest of all debenture stock at any time after the passing of the Act confirming this Order created and issued by the Company shall rank *pari passu* with the interest of all mortgages at any time after the passing of the Act confirming this Order granted by the Company and shall have priority over all principal money secured by such mortgages.
- Existing mortgages to have priority. 42. All mortgages granted by the Company before the passing of the Act confirming this Order and subsisting at the passing thereof shall during the continuance of such mortgages and subject to the provisions of the Acts or Orders under which such mortgages were respectively granted have priority over any mortgages granted by virtue of this Order but nothing in this section contained shall affect any priority of the interest of any debenture stock at any time created and issued by the Company.
- Application of moneys. 43. All moneys raised by the Company under this Order whether by shares or stock or debenture stock or borrowing shall be applied only to those purposes of this Order to which capital is properly applicable.
- Interest not to be paid on calls paid up. 44. No interest or dividend shall be paid out of any share or loan capital which the Company are by this Order authorised to raise to any shareholder on the amount of the calls made in respect of the shares held by him but nothing in this Order shall prevent the Company from paying to any shareholder such interest on money advanced by him beyond the amount of the calls actually made as is in conformity with the Companies Clauses Consolidation (Scotland) Act 1845.
- For protection of Postmaster-General. 45. Nothing in this Order shall be deemed to impose upon the Postmaster-General the obligation of transmitting under the provisions of the Telegraph Act 1868 or any agreement between the Postmaster-General and the Company made in pursuance thereof any larger number of telegraphic messages of the Company free of charge than he would have been bound to transmit had this Order not become law.
- Provision as to general Railway Acts. 46. Nothing in this Order contained shall exempt the Company or the railways by this Order authorised from the provisions of any general Act relating to railways or the better and more impartial audit of the accounts of railway companies passed before or after the passing of the Act confirming this Order or from any future revision or alteration under the authority of Parliament of the

[3 EDW. 7.] *Caledonian Railway Order Confirmation* [Ch. lxxii.]
Act, 1903.

maximum rates of fares and charges or of the rates for small A.D. 1903
parcels authorised by this Order.

47. All costs charges and expenses of and incident to the pre- Costs of
paring for obtaining and confirming of this Order or otherwise in Order.
relation thereto shall be paid by the Company.

The SCHEDULE referred to in the foregoing Order.

HOUSES BUILDINGS OR MANUFACTORIES PARTS ONLY OF WHICH MAY
BE TAKEN.

Parish.	Nos. on deposited Plans.
RAILWAY No. 2.	
Grangemouth - - - -	3 4 5
RAILWAY No. 3.	
Old Monkland - - - -	4 5 8 9 10 16 18
LANDS AT STIRLING.	
Stirling - - - -	3 4 6

Printed by EYRE and SPOTTISWOODE,
FOR
T. DIGBY FERGOTT, Esq., C.B., the King's Printer of Acts of Parliament.

And to be purchased, either directly or through any Bookseller, from
EYRE AND SPOTTISWOODE, EAST HARDING STREET, FLEET STREET, E.C. ; or
OLIVER AND BOYD, EDINBURGH ; or
E. PONSONBY, 116, GRAFTON STREET, DUBLIN.

